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In the Supreme Court of the United States

OCTOBER TERM, 1992

JACKIE HOLDER, ETC., ET AL., PETITIONERS

v.

E.K. HALL, SR., ET AL.

ON WRIT OF CERTIORARI TO THE
UNITED STATES COURT OF APPEALS
FOR THE ELEVENTH CIRCUIT

**BRIEF FOR THE UNITED STATES AS AMICUS CURIAE
SUPPORTING RESPONDENTS**

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QUESTION PRESENTED

Whether the Court of Appeals erred in holding that governance by a single county commissioner, rather than a multi-member board of commissioners, is subject to challenge as dilutive under Section 2 of the Voting Rights Act of 1965, as amended, 42 U.S.C. Section 1973.

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INTEREST OF THE UNITED STATES

This case involves the application of Section 2 of the Voting Rights Act of 1965, 42 U.S.C. 1973, to a claim that the practice of electing a sole county commissioner in Bleckley County, Georgia, dilutes the voting strength of black voters. The United States has the primary responsibility for enforcing Section 2, and the resolution of this case will affect that responsibility. In response to the Court's invitation, the Solicitor General submitted a brief at the petition stage of this case.¹

¹ The government's brief at the petition stage expressed the view that the Voting Rights Act applies to the practice of using single-member offices, but that the practice cannot be

STATEMENT

1. Bleckley County is situated in rural central Georgia. In 1980, it had a total population of 10,767. Twenty-two percent of the population is black; the voting age population is 19 percent black. Pet. App. 4, 5.

Since its creation in 1912, Bleckley County has had a sole commissioner form of government. Pet. App. 4. The commissioner, like all county governing authorities in the State, has both legislative and executive power. Among other things, the commissioner has "exclusive jurisdiction" to control the county's property, to levy taxes, to maintain roads and bridges, to fill vacancies in county offices, to appropriate money, and to make rules and regulations to promote the general welfare. Ga. Code Ann. § 36-5-22.1 (1987). The commissioner is elected by all voters in the county and must receive a majority of the votes cast. Pet. App. 65. No black candidate has ever run for or served as commissioner.² *Id.* at 78.

challenged under Section 2 on a vote-dilution theory. On further reflection, we have concluded for the reasons set forth in this brief that the practice of electing a sole county commissioner is subject to challenge as dilutive in violation of Section 2.

² Bleckley County's black community leaders, many of whom are experienced local politicians, expressed the belief that it would be nearly impossible for a black candidate to win an at-large, county-wide election. Pet. App. 78-79. At trial, the district court agreed, stating, "[h]aving run for public office myself, I'll guarantee you, under the circumstances, I wouldn't run if I were black in [Bleckley] county. You're going to put your hard-earned time and shoe leather campaigning throughout this county * * * under these circumstances?" *Id.* at 79.

In 1985, the Georgia legislature authorized Bleckley County to adopt by referendum a multimember commission consisting of five commissioners elected from single-member districts and a chairman elected at large. 1985 Ga. Laws 4406. That referendum was defeated by a vote of 1,156 to 887. Pet. App. 9.³

2. Respondents are black voters residing in Bleckley County, as well as the local chapter of the NAACP. In 1985, they filed suit in federal district court against petitioners, who are Bleckley County's commissioner and its superintendent of elections. Respondents alleged that Bleckley County's practice of electing a sole commissioner, rather than electing a multimember commission, violates Section 2 of the Voting Rights Act, 42 U.S.C. 1973. Pet. App. 66.

After a trial, the district court ruled in favor of petitioners. Applying the framework established in *Thornburg v Gingles*, 478 U.S. 30 (1986), the district court found that respondents had satisfied the first of the three Gingles preconditions for a vote-dilution claim because, in the absence of the challenged use of a single-member commission, black voters were sufficiently numerous and compact that they would have constituted a majority in one district of a multimember commission. Pet. App. 55; see *Gingles*, 478 U.S. at 50-51. The court found that "[i]f the county commission were increased in number to six commissioners to be elected from five single member districts and if the districts were the same as the present school board election districts, a black majority 'safe' district * * * would result." Pet. App. 12.

³ Four years earlier, county voters approved a five-member district plan for the election of the Bleckley County School Board. Pet. Br. 7 n.5.

The court determined, however, that respondents had failed to prove racially polarized voting in Bleckley County, and had therefore failed to establish the second and third *Gingles* preconditions. See 478 U.S. at 51. In reaching that conclusion, the court assumed that the only way to prove polarized voting is through statistical evidence of voting behavior. Pet. App. 50-51 & n.45. The court noted that respondents had not produced evidence of polarized voting in local elections. *Id.* at 33. Because the county has only one voting precinct, the court found, such evidence was "not available." *Id.* at 25; see *id.* at 33 n.22. Although respondents had offered statistical data concerning the 1984 and 1988 presidential primaries in which Jesse Jackson was a candidate, the court found that the evidence was insufficient to prove a pattern of polarized voting. *Id.* at 37-46, 50-51. The court therefore concluded that respondents had failed to satisfy the third *Gingles* precondition—that whites usually vote sufficiently as a bloc to defeat the minority's preferred candidate. *Id.* at 51. For essentially the same reason, the court found that respondents had failed to prove the second *Gingles* precondition—that the minority group is politically cohesive. *Id.* at 52-55. The court concluded that respondents' failure to establish these two of the *Gingles* preconditions was fatal to their Section 2 claim. *Id.* at 55-56.

Nonetheless, the court went on to consider other factors relevant to the "totality of circumstances" under Section 2. It found that "blacks in Bleckley County continue to suffer from a depressed socioeconomic status," Pet. App. 58; that their status "hinders the possibility of blacks participating actively in the political process," *ibid.*; and that "[t]he

barriers to active participation in the political process are today compounded by the fact that Bleckley County now has only one voting precinct for the entire 219 square-mile area." *Id.* at 7 n.3. The court also found that there "have been problems in the past with regard to low black representation among workers at the election polling place." *Id.* at 58.

On the other hand, the court found that "there is no [candidate] slating process to stand as a barrier to minority participation." Pet. App. 59. The court also found that respondents had failed to prove that the sole commissioner was unresponsive to minority voters or that the policy underlying the election of a sole commissioner is "tenuous." *Ibid.* Considering the totality of circumstances, the court concluded that respondents' Section 2 challenge to Bleckley County's practice of electing a sole commissioner "must fail." *Id.* at 59-60.

3. The court of appeals reversed. Pet. App. 62-86. Relying on its decision in *Carrington Branch of NAACP v. Stallings*, 829 F.2d 7 (11th Cir. 1987), cert. denied, 485 U.S. 936 (1988), the court of appeals held that a challenge to the practice of electing a sole commissioner is "subject to the same analysis" as that used in *Gingles*. Pet. App. 68. Applying that analysis, the court agreed with the district court that respondents had satisfied the first *Gingles* precondition by showing that blacks could constitute a majority of the electorate in one of five single-member districts. *Id.* at 74-75 & n.10. The court rejected the argument that the entire county must serve as the benchmark for determining whether the minority group is sufficiently large to constitute a majority in a district, explaining that it is "appropriate to consider the size and geographical compactness

of the minority group within a restructured form of the challenged system when the *existing structure* is being challenged as dilutive." *Id.* at 74.

The court of appeals further held that the district court had been "operating under a misconception of the law" in finding that respondents had failed to prove racially polarized voting. Pet. App. 76. The court explained that a wide variety of evidence, not only statistical data about elections, is relevant in determining whether there is racially polarized voting. *Id.* at 77. After considering all the relevant evidence, the court of appeals found that the evidence "conclusively" established both white bloc voting and minority political cohesion. *Id.* at 78-85 & n.18.⁴

The court of appeals also concluded that "the totality of the circumstances found in Bleckley County clearly reveal[s] a situation where the electoral power of Bleckley County blacks has been abridged 'on ac-

⁴ Among other things, the court of appeals noted that (1) no black has ever run for commissioner, Pet. App. 78; (2) black political leaders testified that it would be futile for a black candidate to run, *ibid.*; (3) the district judge echoed that observation based on his political experience, *id.* at 79; (4) the available statistical evidence revealed polarized voting, *id.* at 79-80; (5) black candidates had consistently lost local elections in which whites constituted a voting majority, but had won when blacks were in the majority, *id.* at 81; (6) a significant number of Bleckley County voters had supported segregationist candidates in the past, *id.* at 82; and (7) Bleckley County had long practiced racial discrimination in all aspects of local life, *id.* at 83-84. Petitioners challenged in this Court the court of appeals' conclusion that respondents had shown white bloc voting and minority political cohesion, but the Court's order limiting the grant of certiorari and formulating the question presented excluded those issues. 113 S. Ct. 1382 (1993).

count of race or color.'" Pet. App. 86. The court of appeals therefore held that respondents had established a violation of Section 2, and it remanded for the fashioning of a remedy. *Ibid.*

SUMMARY OF ARGUMENT

The court of appeals correctly determined that the practice of electing a sole commissioner to Bleckley County's governing body can be challenged as dilutive of minority voting power under Section 2 of the Voting Rights Act. If the County had moved from a five-member commission, with one member elected by minority voters, to a single-commissioner system in which minority voters had no power to influence the election, the minority vote clearly would have been diluted. The same analysis applies to respondents' vote-dilution challenge to Bleckley County's existing single-commissioner system.

A. The practice of electing a sole commissioner is a "standard, practice, or procedure" within the coverage of Section 2. This Court has made clear that there is no single-member-office exception to Section 2. *Houston Lawyers' Ass'n v. Attorney General of Texas*, 111 S. Ct. 2376 (1991). Although a locality's interests in retaining its existing election system are relevant in evaluating the totality of the circumstances and in formulating a remedy, those interests do not provide a per se exemption from Section 2. Applying Section 2 in this case is further supported by the fact that the preclearance requirements of Section 5 of the Voting Rights Act are applicable to changes in the size of a legislative body; Sections 2 and 5 should be accorded a similar reach in this context. *Chisom v. Roemer*, 111 S. Ct. 2354, 2367 (1991).

Petitioners claim that minority votes are diluted in this case because of the minority's small size in the voting population, not because of the challenged single-commissioner election practice. That is incorrect. In any vote-dilution challenge to an existing election system, it could be said that the minority's small size, rather than the system itself, is the source of the minority's electoral failure. Thus, the issue of vote dilution must be measured against a proposed alternative voting arrangement that is reasonable in the legal and factual context of a particular case.

B. A vote-dilution challenge to Bleckley County's election of a sole commissioner does not conflict with the first precondition for a vote-dilution claim announced by this Court in *Thornburg v. Gingles*, 478 U.S. 30, 50 (1986), and does not rest on the premise that Section 2 guarantees proportional representation. In *Gingles*, this Court required the minority group to demonstrate that, in the absence of the challenged structure, "it is sufficiently large and geographically compact to constitute a majority in a single-member district." 478 U.S. at 50. The plaintiffs in this case met that requirement by measuring the voting strength minority voters would have if Bleckley County had a five-member commission elected from single-member districts. That arrangement is common in Georgia and is consistent with state law and policy. Use of such a benchmark does not embrace a theory of proportional representation.

Nor does it imply that the plaintiffs in a Section 2 case may propose a commission of whatever size would be required to ensure that minority voters can elect a representative of their choice. A court would be fully justified, for example, in rejecting a tiny minority's claim of vote dilution premised on an ec-

centric or impracticable alternative method of redistricting. Here, however, it is Bleckley County that has strayed from the norm. Few counties in Georgia, and none in other States, use a one-person commission as the governing body. The choice of a five-member body, by contrast, is common, authorized, and practicable. Line-drawing problems that may arise in other cases do not warrant a finding that vote-dilution principles are inapplicable here.

C. State interests in retaining the challenged form of electing representatives are relevant in a vote-dilution case. The proper point to consider those interests, however, is in evaluating the totality of the circumstances or in developing a remedy. *Houston Lawyers' Ass'n v. Attorney General of Texas*, *supra*. In this case, the efficiency and economy interests suggested by petitioner in defense of electing a single individual to constitute the entire county commission do not outweigh the substantial dilution of minority voting strength produced by Bleckley County's unusual scheme.

That a vote-dilution challenge may succeed in this case does not lead to the conclusion that all traditional single-office executive positions, such as mayors, governors, or sheriffs, must be subdivided to comply with the Voting Rights Act. The county commission here exercises all legislative as well as executive authority over the county's citizens. The compelling state interests that support the retention of traditional single-executive positions are absent with respect to the single-member-commission approach employed in Bleckley County, a body that also exercises plenary legislative power within the county government.

ARGUMENT

THE PRACTICE OF ELECTING A SOLE COUNTY COMMISSIONER, RATHER THAN A MULTIMEMBER COMMISSION, IS SUBJECT TO CHALLENGE AS DILUTIVE UNDER SECTION 2 OF THE VOTING RIGHTS ACT

A. Section 2 Is Applicable To Single-Member Offices

1. The initial step in determining whether the Voting Rights Act applies to Bleckley County's practice of electing a sole commissioner is to consider the language of the Act. This Court has held that the Voting Rights Act "should be interpreted in a manner that provides 'the broadest possible scope' in combatting racial discrimination." *Chisom v. Roemer*, 111 S. Ct. 2354, 2368 (1991), quoting *Allen v. State Bd. of Elections*, 393 U.S. 544, 567 (1969).

Section 2 of the Voting Rights Act provides that "[n]o . . . standard, practice, or procedure shall be imposed or applied . . . in a manner which results in a denial or abridgement of the right of any citizen of the United States to vote on account of race or color" or membership in a language minority. 42 U.S.C. 1973(a). A violation of that prohibition is established if, "based on the totality of circumstances," it is shown that the political processes leading to nomination or election "are not equally open to participation by members of a class of citizens protected by subsection (a) in that its members have less opportunity than other members of the electorate to participate in the political process and to elect representatives of their choice." 42 U.S.C. 1973(b). The practice of electing a single official to an office in a particular geographic area—the use of a single-

member office—is a "standard, practice, or procedure" within the meaning of Section 2, and elections for such offices thus are covered by Section 2.

This Court recognized that single-member offices are not immune from challenge under Section 2 of the Voting Rights Act in *Houston Lawyers' Ass'n v. Attorney General of Texas*, 111 S. Ct. 2376 (1991). In that case, the plaintiffs brought a vote-dilution challenge to the election of trial judges to single-member offices on a county-wide basis in Texas. The Court expressly rejected the claim that "the 'single-member office' theory automatically exempts certain elections from the coverage of § 2." 111 S. Ct. at 2381. Instead, the Court held that the "coverage of the Act encompasses the election of executive officers and trial judges whose responsibilities are exercised independently in an area coextensive with the districts from which they are elected." *Id.* at 2380. The Court made clear that the state interests advanced in support of the challenged practice of electing officeholders on a county-wide basis "are relevant either to an analysis of the totality of the circumstances that must be considered in an application of the results test embodied in § 2, as amended," or in formulating "possible remedies"; but those interests do not affect "the threshold question of the Act's coverage" or "automatically, and in every case, outweigh proof of racial vote dilution." *Id.* at 2380-2381.

Houston Lawyers' Ass'n involved a claim that the minority vote was diluted by Texas's failure to establish smaller election districts for a single-member officeholder than the area over which the officeholder exercises jurisdiction, 111 S. Ct. at 2381, while this case involves a claim that the minority's vote is diluted by Bleckley County's failure to establish a larger

commission to carry out the functions currently performed by the sole commissioner. Nonetheless, the principle involved in *Houston Lawyers' Ass'n* is equally applicable here. Elections for single-member offices are not exempt from vote-dilution challenges under Section 2, and any interest the State has in maintaining its electoral practices for such offices should be considered under the totality-of-the-circumstances inquiry or at the remedial stage.

The conclusion that the election of a sole commissioner can be challenged as dilutive under Section 2 is further supported by this Court's decisions under Section 5 of the Voting Rights Act, 42 U.S.C. 1973c.⁵ This Court has construed the identical "standard, practice, or procedure" language in Section 5 of the Voting Rights Act to apply to changes in the size of legislative bodies. In *City of Lockhart v. United States*, 460 U.S. 125 (1983), a city changed from a three-member commission to a five-member council. The Court held that the addition of two seats had the potential to dilute minority voting strength in violation of Section 5, even though there was no change in the underlying method of election. *Id.* at 131. In *Presley v. Etowah County Comm'n*, 112 S. Ct. 820, 828 (1992), the Court reaffirmed that a change in the size of a legislative body is a practice with respect to voting covered by Section 5.⁶ In view

⁵ Section 5 requires covered States or political subdivisions to submit changes in voting standards, practices, and procedures to the Attorney General or to the United States District Court for the District of Columbia for preclearance. See *Clark v. Roemer*, 111 S. Ct. 2096 (1991).

⁶ A change in the number of representatives who sit on a body is quite different from a reallocation of functions among

of the "close connection" between Sections 2 and 5, those provisions should be accorded a similar reach in this context. *Chisom*, 111 S. Ct. at 2367.

It would, moreover, be incongruous if the practice of electing a sole commissioner could not be challenged under Section 2. A jurisdiction covered by Section 5 would be precluded from changing from a multimember commission to a sole commissioner when to do so would have a discriminatory effect, but the jurisdiction would be exempt from challenge under Section 2 if it had a similarly discriminatory system already in place. This Court has previously found it "unlikely that Congress intended such an anomalous result." *Chisom*, 111 S. Ct. at 2367 (explaining that one reason for finding judicial elections to be covered by Section 2 is that they are covered by Section 5).

2. Under the Section 2 "results" test, the existence of a vote-dilution violation is determined by evaluating the effect of the challenged practice on the ability of minorities "to participate in the political process and to elect representatives of their choice." 42 U.S.C. 1973(a) and (b). Petitioners contend that the Section 2 results test can never be violated by the practice of electing a sole commissioner, because "[i]t

government officials. In *Etowah County*, the Court held that the preclearance requirements of Section 5 are inapplicable to changes in the allocation of functions performed by the elected officials; a jurisdiction's reduction in the number of elected officials, however, is clearly subject to review under Section 5 because it bears "on the substance of voting power." 112 S. Ct. at 829. Here, in contrast to *Etowah County*, it is the number of elected officials, not the assignment of their functions, that forms the basis for the Voting Rights Act challenge.

is the small size of the group of voters in the district, not its race, that prevents it from achieving a greater measure of electoral success * * *." Pet. Br. 19. That claim is at odds with the theory of the Voting Rights Act. In any challenge to an election practice in which the minority group cannot elect representatives of its own choosing, it could be said that the small size of the group, not the particular election structure, is the cause of the group's electoral failure. If that argument were accepted, it would be impossible to mount a challenge even to a multimember, at-large election system. Yet this Court entertained precisely that form of challenge in *Thornburg v. Gingles*, 478 U.S. 30 (1986).⁷

In *Gingles*, this Court explained that a minority group's size is relevant to a Section 2 challenge in order to determine whether the group has "the *potential* to elect representatives in the absence of the challenged structure or practice." 478 U.S. at 50 n.17. When the minority group is too small to constitute a voting majority even absent the challenged structure

⁷ Our brief at the petition stage (at 5-6) suggested that the practice of electing a single office holder has an adverse effect on minority voters only because of the minority group's small size, and therefore does not meet Section 2(a)'s requirement of producing "a denial or abridgement of the right * * * to vote on account of race or color." 42 U.S.C. 1973(a) (emphasis added). Section 2(b), however, provides that a violation of Section 2(a) "is established" when a minority group shows that "its members have less opportunity than other members of the electorate to participate in the political process and to elect representatives of their choice." Thus, under the express terms of Section 2(b), if a minority group can show that it has been denied an equal opportunity to elect representatives of its choice, it has, by definition, shown an "abridgement of the right * * * to vote on account of race or color."

or practice, the group "cannot claim to have been injured by that structure or practice." * *Ibid.* When, however, the minority group can establish that, with the use of an alternative voting practice or structure it could elect representatives of its choice, the challenge cannot be dismissed on the theory that the group's plight is simply a function of small size combined with a system of majoritarian rule. As we explain below, where, as in this case, the proposed alternative election arrangement against which to measure a claim of vote dilution is reasonable in the legal and factual context of the particular voting practice at issue, analysis of a vote-dilution claim under Section 2 can proceed.

B. The Application Of Vote-Dilution Theory In This Case Is Consistent With *Gingles* And Is Not Premised On The View That Section 2 Guarantees Proportional Representation

Petitioners contend (Br. 24-28) that recognition of a vote-dilution challenge to the County's election of a sole commissioner would undermine the first *Gingles* precondition for a vote-dilution claim and would imply a right to proportional representation. See 42 U.S.C. 1973(b) ("nothing in [Section 2] establishes a right to have members of a protected

⁸ The Court has reserved the issue of whether Section 2 applies to a claim that a minority group, even though lacking the size and compactness "to constitute a majority in a single-member district," has been impermissibly impaired in its ability "to influence elections" through the use of a multi-member district. *Gingles*, 478 U.S. at 46 n.12; see also *Voinovich v. Quilter*, 113 S. Ct. 1149, 1155 (1993) (assuming without deciding that an influence claim may be brought); *Grove v. Emison*, 113 S. Ct. 1075, 1084 n.5 (1993) (leaving open the same issue).

class elected in numbers equal to their proportion in the population"). We disagree.

1. In *Thornburg v. Gingles*, *supra*, this Court stated that, as a precondition to a vote-dilution claim based on the submergence of a minority group in a multimember district electing candidates at-large, "the minority group must be able to demonstrate that it is sufficiently large and geographically compact to constitute a majority in a single-member district."⁹ 478 U.S. at 50. Petitioners argue that, if the minority group were free to propose a revised voting scheme involving an unlimited number of additional elected positions as a means of demonstrating vote dilution, the group could always establish the existence of a single-member district in which it constituted the majority. The effect of that rule, petitioners argue, would be to guarantee proportional representation for the minority group.

Application of *Gingles* in this case does not produce that consequence. The purpose of the first *Gingles* precondition is to ensure "that the minority has the potential to elect a representative of its own choice in some single-member district." *Grove v. Emison*, 113 S. Ct. 1075, 1084 (1993); *Gingles*, 478 U.S. at 50 n.17. The claim in this case meets that requirement without presupposing any right to proportional representation. In finding that the practice of electing a sole commisisoner is dilutive, the

⁹ The Court articulated two other preconditions to a vote-dilution claim—that "the minority group must be able to show that it is politically cohesive" and that "the white majority votes sufficiently as a bloc to enable it * * * usually to defeat the minority's preferred candidate." 478 U.S. at 51. The court of appeals found those preconditions to be established, and they are not at issue in this Court. See note 4, *supra*.

court of appeals compared it to a five-member commission elected from single-member districts. The proposed five-district arrangement was specifically authorized by the state legislature when it provided for a referendum on a multimember commission in 1985, is common throughout the State, and is used by Bleckley County for electing the school board (Pet. App. 86 n.20). Measuring the minority voters' power to elect against that state-sanctioned electoral arrangement does not threaten to create a right of minorities to have their members elected in proportion to their percentage of the population (no matter how small); it simply takes into account a well-recognized alternative election system that the county was free to adopt.

Nor does acceptance of the claim described above imply that plaintiffs may propose a commission of whatever size is required to create a single-member district in which the minority group would have majority voting strength. The State's electoral policies and traditional ways of structuring local government are of substantial relevance in determining what sort of proposed alternative voting practice can reasonably provide a measure of the dilutive effect of the challenged practice. For example, in *Gingles* this Court stated that a minority group must be "sufficiently * * * geographically compact" to form a majority in a single district. 478 U.S. at 50. The geographical-compactness rule derives not from an express requirement to that effect in Section 2, but rather from traditional characteristics of this country's election districts, as drawn under state law.¹⁰

¹⁰ In practice the compactness rule is not applied more strictly under Section 2 than the State applies compactness

Similarly, a court would be justified in rejecting a tiny minority's claim of vote dilution that is premised on expanding a county commission to 25 or 50 members, for that numerous a county governing body would be largely, if not entirely, unprecedented in this country. But that does not imply that the court may reject a claim based on a reconstituted commission of a size that is endorsed by state law and fully consistent with state policy.

A five-member body is by far the most common size for a county commission in Georgia. Georgia Dep't of Community Affairs, *County Government Information Catalog* (1989) (Table 1.A: Form of Government) (76 of Georgia's 159 counties had five commissioners, including 25 counties that are smaller than Bleckley County). Indeed, the Georgia legislature expressly authorized Bleckley County to adopt a commission consisting of five members elected from single-member districts (as well as a chairman elected at-large). 1985 Ga. Laws 4406. Moreover, far from representing a common scheme nationwide, the use of a sole commissioner to exercise all legislative and executive authority over citizens is an aberration. Georgia is the only State in which any counties have commissions with only one member. See U.S. Bureau of the Census, *1987 Census of Governments*, Vol. 1, No. 2: Government Organization; Popularly Elected Officials [GC87(1)-2] (Jan. 1990); National Ass'n of Counties, *County Government Structure: A State by State Report* (July 1989). Even in Georgia, the use of a sole commissioner is rare. As of 1990, only 21 Georgia counties had a

principles in its other redistricting actions. See *Jeffers v. Clinton*, 730 F. Supp. 196, 207 (E.D. Ark. 1989), *aff'd mem.*, 498 U.S. 1019 (1991).

sole commissioner, Pet. App. 4-5, and, as petitioners observe (Br. 4), only 14 have a sole commissioner today.

2. Petitioners err in contending (Br. 15) that *Gingles* mandates that "[v]ote dilution must be measured against the number of positions in the existing structure." *Gingles* states that vote dilution is measured against the minority's potential to elect "in the absence of the challenged structure or practice." 478 U.S. at 50 n.17. The fact that respondents posit a structural change in the current number of elected commissioners in order to measure vote dilution is not a reason to reject their theory; any vote-dilution claim contemplates a change in the system of electing the official or officials in question. For example, a claim of vote dilution directed against at-large elections in multimember districts envisions a change to single-member districts.¹¹

Nor is the theory underlying respondents' claim invalid because a court must make a threshold determination of whether the number of commissioners proposed by the plaintiffs in a Section 2 case provides a suitable benchmark for measuring dilution. It is true that that task may involve some line-

¹¹ That the process of identifying black voters' potential to elect in this case may differ from the process of subdividing a multimember district described in *Gingles* simply reflects the different nature of the claims at issue. The Court has recognized that "the *Gingles* factors cannot be applied mechanically and without regard to the nature of the claim. For example, the first *Gingles* precondition, the requirement that the group be sufficiently large to constitute a majority in a single district, would have to be modified or eliminated when analyzing the influence-dilution claim we assume *arguendo* to be actionable today." *Voinovich v. Quilter*, 113 S. Ct. at 1157; see note 8, *supra*.

drawing. Line-drawing, however, is often required in making other Section 2 determinations, such as what constitutes *sufficient* geographical compactness of the minority population for the purpose of creating a single-member district. In this case, respondents' proposed benchmark was appropriate in light of the State's endorsement of five-member commissions, the prevalence of commissions of that size, and the use of five districts within Bleckley County itself for electing school board members. Even if the task of determining an appropriate benchmark were more difficult, however, this Court has made clear that the need to make difficult judgments does not "justify a judicially created limitation on the coverage of the broadly worded statute, as enacted and amended by Congress." *Chisom v. Roemer*, 111 S. Ct. at 2368.

In a related context, this Court has articulated principles to guide federal courts in determining whether federal law may be invoked to require a modification in the size of a legislative body. In *Sixty-Seventh Minnesota State Senate v. Beens*, 406 U.S. 187, 200 (1972), this Court held that a district court abused its discretion in "drastically changing" the size of a State's legislative body in order to remedy a one-person, one-vote violation. At the same time, the Court observed that it would "not disapprove a court-imposed minor variation from a State's prescribed figure when that change is shown to be necessary to meet constitutional requirements." *Id.* at 199.

Respondents' dilution theory does not require petitioners to make *any* departure from Georgia law or policy, since five-member commissions are the rule in Georgia, not the exception. There is, accordingly, a firm basis for concluding that the dilution of the

minority vote in electing a single member to Bleckley County's commission is cognizable under Section 2.

This case presents no issue as to whether plaintiffs can challenge the size of an existing multimember council or commission as a dilutive practice.¹² The only question presented here is whether the practice of electing a sole commissioner, rather than a multimember commission, can be challenged. That practice is distinctive. The practice of electing a sole commissioner has an inherent tendency to dilute the voting strength of a minority. Indeed, there is probably no practice that has a greater dilutive potential. And the highly unusual nature of Bleckley County's sole-commissioner system renders it particularly suspect under Section 2. See S. Rep. No. 417, 97th Cong., 2d Sess. 29 & n.117 (1982); see *Gingles*, 478 U.S. at 37. Thus, regardless of whether plaintiffs may successfully challenge the size of a multimember body as a dilutive practice under Section 2, a challenge to the election of a sole commissioner is permissible.

C. Analysis Under Section 2 Does Not Ignore State Policy Interests

Finally, petitioners contend (Br. 37-40) that allowing a challenge to the practice of electing a sole commissioner would invite an impermissible intrusion on state policy interests. That contention mis-

¹² Some courts have rejected that type of claim. See *McNeil v. Springfield Park Dist.*, 851 F.2d 937, 946-947 (7th Cir. 1988), cert. denied, 490 U.S. 1031 (1989); *Romero v. City of Pomona*, 883 F.2d 1418, 1425 n.10 (9th Cir. 1989); see also *Overton v. City of Austin*, 871 F.2d 529, 543 (5th Cir. 1989) (Jones, J., concurring).

conceives the way in which state interests are taken into account in evaluating a Section 2 claim.

In *Houston Lawyers' Ass'n v. Attorney General of Texas*, *supra*, this Court explained that, under the totality of the circumstances that bear on the application of the results test under Section 2, a State may advance its "interest in maintaining an electoral system" as a factor to be considered. 111 S. Ct. at 2381. "A State's justification for its electoral system is a proper factor for the courts to assess in a racial vote dilution inquiry." *Ibid.* The Court also indicated that, if a violation is established, the State's interests and policies underlying its electoral system are relevant at the remedial stage. *Id.* at 2380.

Under *Houston Lawyers' Ass'n*, petitioners' justifications for electing a single individual to constitute its county commission may be considered on a case-by-case basis in determining whether a violation has been established; those justifications are part of the totality of the circumstances that form the context of the alleged violation. The record in this case, however, does not indicate that petitioners established a justification for retaining a sole commissioner that outweighs the substantial dilution of black voters' ability to elect representatives of their choice. While the district court found that petitioners' interest in electing a sole commissioner is not "tenuous," Pet. App. 10, the interest asserted by petitioners—that the election of a sole commissioner is "economical and efficient," Pet. Br. 7-8—is not especially strong in view of the unusual character of the sole-commissioner approach and the many examples of workable multimember commissions in other counties (in-

cluding counties that are smaller than Bleckley County) in Georgia and elsewhere throughout the Nation.¹³

That a Section 2 violation may be established in this case does not mean that all practices of electing a single individual to office are open to invalidation. Positions of executive leadership are frequently entrusted to a single individual—as exemplified by the Constitution's vesting of the executive power in one President U.S. Const. Art. II, § 1, Cl. 1. A State will often have a compelling interest in electing a single official to perform executive functions, and it can support that interest by reference to long and widely followed traditions. See *The Federalist* No. 69, at 415 (A. Hamilton) (C. Rossiter ed. 1961) ("I proceed now to trace the real characters of the proposed executive * * *. The first thing which strikes our attention is that the executive authority, with few exceptions, is to be vested in a single magistrate.") To permit a plaintiff to seek multiple officers for such positions would be a radical departure from this country's political traditions, and there is no evidence in the history of the Voting Rights Act that Congress intended that consequence. Cf. *Chisom v. Roemer*, 111 S. Ct. at 2364.

¹³ Petitioners err (Br. 38) in suggesting that *Gregory v. Ashcroft*, 111 S. Ct. 2395 (1991), would require a clear statement by Congress before a court could require a change in the number of commissioners. Because Congress expressly relied on its power to enforce the Civil War Amendments in enacting Section 2, see S. Rep. No. 417, *supra*, at 39-43, and because the Voting Rights Act clearly regulates state voting practices, *Gregory* is not relevant here. See *Chisom*, 111 S. Ct. at 2372-2373 (Scalia, J., dissenting).

In contrast, the commission in Bleckley County exercises all legislative as well as executive functions, including the power to set tax rates. Ga. Code Ann. § 36-5-22.1 (1987). That is an extraordinary concentration of power in a single elected official. Compared to the traditional practice of electing a single mayor, sheriff, coroner, clerk of court, school superintendent, or governor, there is no historical or strong functional interest in assigning to a single individual all of the legislative and executive functions that Georgia law delegates to the county's governing body. Bodies that exercise such mixed functions are typically composed of multiple members.

Consistent with the foregoing principles, the Eleventh Circuit, while permitting minority voters to challenge the practice of electing a sole commissioner, has rejected the view that Section 2 may be used to alter the practice of electing a single person to offices such as lieutenant governor, sheriff, probate judge, and tax collector. See *Dillard v. Crenshaw County*, 831 F.2d 246, 251 (11th Cir. 1987); *United States v. Dallas County Comm'n*, 850 F.2d 1430, 1432 n.1 (11th Cir. 1988), cert. denied, 490 U.S. 1030 (1989). Accordingly, this Court's affirmance of the Eleventh Circuit's holding that Section 2 is violated by the practice of electing a sole county commissioner in this case would in no way suggest that all traditional single-member executive offices are subject to challenge under Section 2.

CONCLUSION

The judgment of the court of appeals should be affirmed.

Respectfully submitted.

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